

HOUSE No. 5346

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, April 9, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 5083) of Kelly W. Pease (with the approval of the mayor and city council) that the city of Westfield be authorized to convert one seasonal off-premises all alcoholic beverages license to an annual license in said city, reports recommending that the accompanying bill (House, No. 5346) ought to pass [Local Approval Received].

For the committee,

TACKEY CHAN.

HOUSE No. 5346

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the City of Westfield to convert a seasonal license for the sale of all alcoholic beverages to be drunk off premises to an annual license for the sale of all alcoholic beverages to be drunk off premises.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1.(a) Notwithstanding sections 17 and 17B of chapter 138 of the General
2 Laws, the licensing authority of the city of Westfield may convert 1 seasonal license for the sale
3 of all alcoholic beverages not to be drunk on the premises under section 15 of said chapter 138,
4 currently issued to SHIVA LAXMI INC, d/b/a Pleasant Street Market, located at 54 Pleasant
5 Street to an annual license for the sale of all alcoholic beverages not to be drunk on the premises
6 under said section 15 of said chapter 138 to SHIVA LAXMI INC, d/b/a Pleasant Street Market,
7 located at 54 Pleasant Street. The license converted under this section shall be subject to all of
8 said chapter 138 except said sections 17 and 17B.

9 (b) The licensing authority shall not approve the transfer of the license converted under
10 this section to any other location but it may grant the license to a new applicant at the same
11 location if the applicant files with the licensing authority a letter from the department of revenue
12 and a letter from the department of unemployment assistance indicating that the license is in

13 good standing with those departments and that all applicable taxes, fees, and contributions have
14 been paid.

15 (c) If the licensee terminates or fails to renew a license converted under this section or
16 any such license is cancelled, revoked or no longer in use, it shall be returned physically, with all
17 of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority and the
18 licensing authority may, within 3 years after such return, then grant the license to a new applicant
19 at the same location under the same conditions as specified in this section, otherwise such license
20 shall dissolve.

21 SECTION 2. Upon the issuance of the license authorized in section 1, the licensee shall
22 return physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the
23 licensing authority, its license for the sale of wine and malt beverages not to be drunk on the
24 premises under section 15 of chapter 138.

25 SECTION 3. This act shall take effect upon its passage.